

ENVIRONMENTAL, SOCIAL AND GOVERNANCE POLICY

EnCap Investments, L.P. (“EnCap”)¹ has a long history of responsible investment practices that are reflected in the way we have conducted business since inception. We believe that environmental, social and governance (“ESG”) principles are fundamentally about doing the right thing, and that sound ESG practices allow us to mitigate risk and build resilient businesses with a goal of balancing capital preservation and value creation. Our ESG efforts are underpinned by a foundation of strong, principled governance. As responsible investors, we continue to support the inclusion of ESG factors into the overall risk and return assessment on the companies we partner with.

We recognize that ESG considerations are continuing to evolve and are committed to staying abreast of these changes while also prioritizing matters that are consistent with our ideals in order to deliver leading financial performance. EnCap works to support portfolio companies² in building businesses with a like-minded commitment toward ESG issues.

Resultingly, this “Policy” is intended to articulate certain fundamental ESG building blocks to which EnCap aspires, and is intended to evolve and be updated over time as appropriate to meet our needs and those of our investors. EnCap implements and interprets this Policy in accordance with local laws and regulations, recognizing that this Policy may need to be modified and considered on a case by case basis to comply with relevant local requirements and practices, and according to a company’s resources.

Environmental Policy

- We promote the importance of being responsible stewards of air, land, and water to our operators. We encourage and embrace the efficient use of energy and, where feasible and practicable, expect progress towards solutions to reduce adverse impacts on the environment resulting from our portfolio companies’ operations.
- We believe that economic considerations in isolation do not provide sufficient guidance for environmentally conscious decision-making that balances the interests of individuals, communities and future generations. We encourage our Upstream portfolio companies to monitor and reduce emissions where commercially feasible, and investment in decarbonization efforts is central to the strategy of our Energy Transition portfolio companies.
- We encourage our portfolio companies to prioritize innovative technologies and practices to improve environmental performance where commercially feasible.

¹ References to “We,” “our,” the “Firm” and “us” refer to EnCap, and do not include its portfolio companies.

² References to “portfolio companies” refer to companies in which EnCap has a controlling position and that are not externally managed. EnCap’s engagement with investments other than portfolio companies (as that term is defined in this Policy) is also guided by this Policy, although the extent and manner of its stewardship and engagement with such investments will necessarily differ and may be limited.

- We support EnCap's portfolio companies in our expectation that they comply with applicable environmental laws.

Social Policy

- We take pride in attracting talented employees and providing them an environment to grow.
- We create an inclusive and respectful work environment where our talented employees can succeed, seeking at all times to be an equal opportunity employer and treat employees fairly and without prejudice on the basis of race, color, sex (including pregnancy), religion, national origin, citizenship status, age, physical or mental disability of an otherwise qualified individual, genetic information, veteran status, participation in a protected activity as defined by applicable law, or other characteristic protected by federal, state, or local law or ordinance.
- We believe that the activities of our portfolio companies should not only benefit employees and stakeholders, but also the communities in which our portfolio companies operate. We support portfolio companies in their work with local stakeholders and communities to create jobs, expand their positive impact and mitigate externalities through engagement and/or philanthropic activities.
- We set an expectation for EnCap's portfolio companies to seek to fully comply and/or exceed compliance with applicable health and safety regulatory requirements in the jurisdictions in which they operate, as well as implement responsible controls where necessary and maintain a culture focused on applicable, relevant health and safety issues. Depending on the nature of a portfolio company's business, certain portfolio companies are expected to have supply chain policies in place.
- We also support EnCap's portfolio companies in their efforts to:
 - Provide relevant and necessary health and safety training to personnel;
 - Identify and assess potential hazards and threats to people and assets, implement reasonable and practicable actions to mitigate or manage risks, and strive to achieve the goal of minimizing safety incidents; and
 - In the event of a health and safety or ESG-related incident, take appropriate responsive, corrective action, and perform reporting to relevant regulatory authorities in a timely manner.

Corporate Governance Policy

- We strive to maintain EnCap's reputation by conducting our business with integrity, honesty, and transparency.

- We seek to ensure that our business practices comply fully with all applicable laws and regulations.
- EnCap endeavors to work with portfolio companies to build businesses with appropriate commitments toward ESG issues. We seek to invest in companies and partner with management teams with a like-minded commitment to ESG.
- EnCap manages risk to our investments by seeking to leverage board representation at the portfolio company level. We also expect portfolio companies to discuss ESG matters at quarterly board meetings. Notwithstanding EnCap's role on the board of directors, each portfolio company is responsible for its own ESG risk management processes, policies and procedures. Our approach to working with portfolio companies on ESG considerations is dependent on our investment structure and terms, applicable industries and jurisdictions, and other considerations. Our engagement will be tailored accordingly.
- We expect portfolio companies to have ESG-related policies and procedures as appropriate for their business.
- EnCap endeavors to collect standardized ESG metrics from our portfolio companies to direct areas of focus and assess improvement.

This Policy does not confer any rights, either directly or as a third party beneficiary, upon any person or entity, including but not limited to any rights to contract, confer or otherwise interact with EnCap or any portfolio company; or any right to a renewal of any contract, or to participate in any process. EnCap and its portfolio companies do not assume any legal duty to any person or entity by virtue of this Policy.

This Policy shall not preclude EnCap or any portfolio company from acting in a way that is consistent with its fiduciary duties or necessary to satisfy those duties, including in the making of any investment or entering into arrangements and ventures.

As part of this Policy, EnCap has implemented a Responsible Investment Policy (see the Exhibit to this Policy), incorporated herein. The standards of this Policy are in addition to, and do not supersede, the provisions of any legal agreement or contract, or any other applicable policy. This Policy is part of an overall framework of policies implemented by EnCap that may be in effect from time to time.

This Policy shall supersede and replace any prior EnCap ESG policy and shall cover on a going forward basis, subject to the limitations discussed herein, EnCap's existing and future actual or potential investments. It is effective as of August [●], 2023.

THIS POLICY IS INTENDED TO PROVIDE GENERAL INFORMATION REGARDING ENCAP'S ESG STRATEGY AND NOT FOR THE PURPOSE OF SOLICITING INVESTORS FOR ANY ENCAP FUND. UNDER NO CIRCUMSTANCES SHOULD THE INFORMATION PROVIDED BE CONSIDERED AN OFFER TO SELL, OR A SOLICITATION TO BUY, ANY SECURITY. SUCH OFFER OR SOLICITATION MAY ONLY BE MADE TO ACCREDITED INVESTORS AND QUALIFIED PURCHASERS PURSUANT TO THE CURRENT OFFERING DOCUMENTS OF THE RELEVANT ENCAP FUND. THE PAST

PERFORMANCE OF PREVIOUS ENCAP FUNDS AND PORTFOLIO COMPANIES IS NOT NECESSARILY INDICATIVE OF FUTURE RESULTS.

EXHIBIT

RESPONSIBLE INVESTMENT POLICY

I. Policy Statement

EnCap Investments, L.P.'s ("EnCap")¹ Responsible Investment Policy sets forth certain environmental, social, and governance ("ESG") issue guidelines applied to EnCap's investment process. EnCap believes that a responsible investment policy helps us to create a better society for current and future generations while providing investment returns to our investors. EnCap seeks to integrate ESG considerations throughout an investment's life cycle and crafts an engagement approach designed to match our influence over the investment and jurisdiction in which the potential investment operates, our investment strategy, the company's stage, and other investment considerations.

EnCap recognizes that our investors have a duty to act in the best interests of their beneficiaries. In this fiduciary role, our investors may determine that ESG issues can affect investment performance, and should therefore be thoughtfully managed. EnCap acknowledges these concerns and seeks to reduce risk and enhance value by building a proactive focus on these issues across the investment process.

II. ESG Governance

EnCap's commitment to integrating ESG considerations in our investment process begins with a strong foundation in governance. The Firm maintains a Compliance Manual and Code of Conduct, which serve to help protect the Firm's business and reputation and to guide employees in their actions. The Managing Partners of EnCap have oversight over the Firm's responsible investing efforts and set the tone for the way the Firm conducts its business. The Head of ESG reports directly to the Managing Partners; the Head of ESG leads our ESG strategy across all functional departments, interfaces with portfolio companies² regarding our ESG-related expectations, and communicates with stakeholders on ESG matters, coordinating with the Chief Financial Officer and Chief Compliance Officer. The Firm may also work with ESG consultants to assist in our data collection, analysis, and reporting efforts.

It is core to our investment strategy that we seek to leverage board representation at the portfolio company level, allowing EnCap to influence portfolio company business decisions when appropriate, while preserving each portfolio company's ability to manage its day-to-day operations. EnCap also supports and assists its management teams in identifying, evaluating, and managing relevant ESG-related risks and opportunities throughout the life cycle of

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investments, including, but not limited to, identifying trends, sharing best practices, and identifying and evaluating potential ESG-related opportunities. Nevertheless, each portfolio company is ultimately responsible for its own ESG performance, processes and risk management.

III. EnCap's Responsible Investment Guidelines

EnCap has adopted a set of comprehensive responsible investment guidelines to inform its governance and process prior to an investment and while that investment is ongoing.

These responsible investment guidelines are adapted for use based on a company's resources, stage, industry, jurisdiction, and our investment strategy. Resultingly, the guidelines are considered on a case by case basis to comply with relevant local requirements and practices, and informed by the American Investment Council's (formerly the Private Equity Growth Capital Council) guidelines for responsible investing as adopted by member firms. For example, if EnCap is limited in its ability to conduct diligence, or influence the consideration of ESG issues in connection with any investment, it adapts its application of these responsible investment guidelines.

EnCap shall:

- A. Consider relevant ESG issues associated with potential new investments, as well as during the period of ownership; engage with prospective portfolio companies to inform our analysis; consider any geopolitical and macro-economic considerations; integrate ESG considerations into diligence and a holistic evaluation of a company at all phases; and assess ESG materiality at the portfolio company level.
- B. Seek to identify and collaborate on opportunities for ESG-related value creation for investors and other stakeholders throughout the investment process. This process typically begins at the diligence phase and extends beyond the initial ownership phase and during the period of ownership.
- C. Seek to identify opportunities among its portfolio companies, including ESG-related opportunities, to build value for our investors.
- D. Expect portfolio companies to have ESG-related policies and procedures as appropriate for their business, including required health and safety standards.
- E. Seek to be accessible to, and engage with, relevant stakeholders either directly or through representatives of portfolio companies, as appropriate.
- F. In engaging with portfolio companies, seek to prioritize identified ESG risks or opportunities that may have the largest impact on a company's financial condition or operating performance.
- G. Expect portfolio companies to discuss relevant ESG matters at quarterly board meetings. In addition, we expect portfolio companies to provide annual ESG reporting

for use by EnCap in monitoring ESG progress and identifying areas of ESG risk and opportunity such that EnCap can seek to share learnings and guidance with each portfolio company. EnCap seeks to achieve value creation for each portfolio company while benefiting stakeholders, including investors, local communities, landowners, employees, and the natural environment.

- H. Encourage governance structures that provide appropriate levels of oversight in the areas of audit, risk management, compliance and potential conflicts of interest and to implement compensation and other policies that align the interests of owners and management. We strive to maintain EnCap's reputation by exhibiting diligence, honesty, fairness and transparency in all of our business dealings.
- I. Expect that portfolio companies be committed to compliance with applicable national, state and local labor laws in their jurisdictions; support the payment of fair wages and benefits to employees; provide a safe and healthy workplace in conformance with national and local law; and, consistent with applicable law, respect the right of freedom of association.
- J. Expect that portfolio companies maintain appropriate policies that prohibit bribery and other improper payments to public officials consistent with applicable laws, which may include the U.S. Foreign Corrupt Practices Act and the OECD Anti-Bribery Convention.
- K. Respect the human rights of those affected by our investment activities and expect that our portfolio companies prohibit suppliers from utilizing child or forced labor and prohibit illegal discrimination.
- L. Encourage our portfolio companies to advance these principles in a way which is consistent with their fiduciary duties.

IV. Reporting and Recordkeeping

To monitor ESG progress and identify areas of ESG risk and opportunity for its portfolio companies, EnCap expects that portfolio companies quarterly report on ESG matters at board meetings.

EnCap strives to be transparent in its approach to responsible investment by reporting on its progress and outcomes. EnCap provides updates to investors, as deemed practicable and appropriate by the Firm. The format of such updates may include verbal updates or confidential reports to EnCap investors.

This Responsible Investment Policy is an integrated part of EnCap's Environmental, Social and Governance Policy. The standards of this Responsible Investment Policy are in addition to, and do not supersede, the provisions of any legal agreement or contract, or any other applicable policy. This Responsible Investment Policy is part of an overall framework of policies implemented by EnCap that may be in effect from time to time.

This Responsible Investment Policy is subject to change, shall supersede and replace any prior EnCap Responsible Investment Policy and shall cover on a going forward basis, subject to the limitations discussed herein, EnCap's existing and future actual or potential investments.